

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 34
JUDICIAL OFFICER: LEONARD E MARQUEZ
HEARING DATE: 07/06/2026

INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN
DEPARTMENT 34

The tentative ruling will become the ruling of the Court unless by 4:00PM of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 34 (Dept34@contracosta.courts.ca.gov) to request argument and must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why. Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00PM of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED
THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER
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Meeting ID: 161 108 5023
Passcode: 869677

Law & Motion

1. 9:00 AM CASE NUMBER: C23-02039
CASE NAME: OLD REPUBLIC NATIONAL TITLE INSURANCE COMPANY VS. RICKY HORTON
***HEARING ON MOTION IN RE: QUASH SUBPOENA DUCES TECUM**
FILED BY: HORTON, RICKY DEAN
TENTATIVE RULING:

Defendant Ricky Dean Horton ("Defendant R. Horton") filed a motion to quash subpoena on February 20, 2026 (the "Motion to Quash"). The Motion to Quash was set for hearing on July 6, 2026. The motion is opposed.

Background

The Motion to Quash seeks an order quashing a subpoena dated February 3, 2026 (the “Subpoena”) directed to Valley Strong Credit Union (the “Bank”) requesting production of Defendant R. Horton’s personal bank account records (the “Bank Records”). See Declaration of Ricky Dean Horton filed February 20, 2026 (“R. Horton Decl.”), ¶13 and **Exhibit A** (Deposition Subpoena for the Production of Business Records). The Subpoena was issued by counsel for plaintiff Old Republic National Title Insurance Company (“Plaintiff”).

Analysis

Defendant R. Horton argues that the disclosure of his personal financial information through the subpoenaed Bank Records violates his right to privacy. He argues that the Bank Records are not relevant to the issues in this lawsuit. He also argues that the subject Subpoena is overbroad and unduly burdensome. Lastly, he objects that that Subpoena is defective for failure to be accompanied by a supporting affidavit.

Asserted Procedural Deficiency regarding Separate Statement

Plaintiffs contend that Defendant R. Horton’s motion is defective because he failed to file a Separate Statement in support of the Motion to Quash.

Any motion involving the content of a discovery request or the responses to such a request must be accompanied by a separate statement, including a motion to “...quash the production of documents or tangible things at a deposition.” Rule 3.1345(a)(5) of the California Rules of Court (“CRC”); see Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2025) (“Rutter Civ. Pro.”) § 8:602.5.

However, this requirement does not apply “[w]hen no response has been provided to the request for discovery.” CRC 3.1345(b)(1). It does not appear that any written response was provided to the subject Subpoena.

The supplemental papers filed June 22, 2026 by Defendant R. Horton included a copy of the Notice of Objection served on the Bank on February 20, 2026. It did not contain an item by item written response to the category or categories of documents sought.

In any event, the Court exercises its discretion to consider the matter, especially since the subject Subpoena only involves a single request for documents.

Privacy

When considering restrictions on the scope of discovery based on privacy concerns, the California Supreme Court has set out the applicable framework. The party asserting a privacy right must establish a legally protected privacy interest, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious. *Williams v. Superior Court* (2017) 3 Cal.5th 531, 552 (“*Williams*”). The party seeking information may raise in response whatever legitimate and important countervailing interests disclosure serves, while the party seeking protection may identify feasible alternatives that serve the same interests or protective measures that would diminish the loss of privacy. *Id.* A court must then balance these competing considerations. *Id.* Obvious invasions of interests fundamental to personal autonomy must be supported by a compelling interest. *Id.*

The Court finds that Defendant R. Horton has shown a legally protected privacy interest in the Bank Records, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious. A right of privacy exists as to a party’s confidential financial affairs, even when

the information sought is admittedly relevant to the litigation. See *Cobb v. Superior Court* (1979) 99 Cal.App.3d 543, 549; see also Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2025) § 8:303 *et seq.* One's personal banking records contain sensitive personal information about their financial affairs, as Defendant R. Horton's declaration plainly attests with respect to his own banking records. See R. Horton Decl., ¶¶4-7.

The Court next turns to the question of whether Plaintiffs have shown legitimate and important countervailing interests in the disclosure of the Bank Records and the balancing of such interests against the privacy considerations.

This action arises from the purported payoff of a mortgage loan taken out by co-defendant Kevin Horton ("Defendant K. Horton") and secured by 2017 deed of trust. Defendant R. Horton and defendant K. Horton contend that this mortgage loan was paid off through a 2020 refinance transaction with the lender Freedom Mortgage Company. Plaintiffs and other parties, including Freedom Mortgage Company, contend that the 2020 refinance loan was canceled and did not fund, but that the lender mistakenly recorded certain instruments relating to the 2020 refinance which were later rescinded. See Complaint filed August 17, 2023; see also Minute Orders dated January 12, 2026 (regarding rulings on motions for summary judgment brought by Defendant R. Horton and Defendant K. Horton).

The Bank Records are sought for a three-year time period:

DOCUMENTS REQUESTED:

Produce any and all bank account records relating to bank accounts at Valley Strong Credit Union, in the name of Ricky Dean Horton, from January 1, 2021 through January 1, 2024.

See R. Horton Decl., **Exhibit A**.

Plaintiffs have not shown that the Bank Records are directly relevant to investigate financial transactions relating to the disputed issues, such that Plaintiffs have a strong countervailing interest in the disclosure of the Bank Records.

The Opposition argues that the subpoenaed Bank Records are reasonably calculated to lead to the discovery of admissible evidence related to the allegedly canceled 2020 refinance loan payoff as well as the contentions that "R. Horton provided incomplete and knowingly false information to Plaintiff in connection with his acquisition of the subject property in 2023" and related allegations in Defendant R. Horton's Cross-Complaint. See Amended Cross Complaint filed December 29, 2023. Defendant R. Horton alleges that he purchased the subject property on or around January 19, 2023, unencumbered by the 2017 deed of trust. *Id.* at p. 2 *et seq.* This Amended Cross Complaint was later dismissed on February 16, 2024.

However, there is no showing of any likelihood that any financial transactions relating to the 2020 refinance loan or the purported January 2023 purchase involved the Bank.

Although Plaintiffs assert that the Bank Records are for Defendant R. Horton's "only known bank account," that does not establish any link to what, if any, banking institution may have been used by Defendant R. Horton in relation to the 2020 refinance loan or transactions relating to the purported January 2023 purchase.

No evidence was proffered to indicate that the source of funds relating to any of these transactions was the Bank or that monies following from the transactions went to the Bank. Nor is there even evidence that Defendant R. Horton even had accounts at the Bank at the time so that it might reasonably be

inferred that monies flowed into or out of this Bank in connection with the transactions at issue.

Weighing the privacy concerns against the need shown, or lack thereof, the Court concludes that Plaintiffs have not made a sufficient showing on this record of basis to require the disclosure of the Bank Records over the privacy objection by Defendant R. Horton.

Nonetheless, nothing herein suggests that Defendant R. Horton would not be obligated to produce banking records in his custody, possession or control regarding the transactions at issue. The Court only rules that Plaintiffs' Subpoena, framed as it is for the production of all of Defendant R. Horton's banking records during the described time period, fails to overcome the privacy objection interposed.

Other Issues

In light of the foregoing, the Court need not consider the other issues raised by Defendant R. Horton as to the validity of the Subpoena.

Disposition

The Court finds and orders as follows:

1. The Motion to Quash is GRANTED.
2. The Subpoena is hereby QUASHED and the Bank shall not produce any documents to the requesting party in response to it. Any documents previously produced by the Bank pursuant to the subpoena, if any, shall be returned, forthwith, to the custody of the moving party.
3. The Court shall issue the order after hearing.

2. 9:00 AM CASE NUMBER: C23-02305
CASE NAME: ELIZABETH REYES VS. WESTERN DENTAL SERVICES, INC
***HEARING ON MOTION FOR DISCOVERY COMPEL DEFENDANT TO PAY ALL ARBITRATION FEES**
FILED BY: REYES , ELIZABETH
TENTATIVE RULING:

Plaintiff Elizabeth Reyes ("Plaintiff") filed a Motion to Compel Defendant to Pay All Arbitration Fees on March 17, 2026 (the "Motion to Compel Payment of Fees"). The Motion to Compel Payment of Fees was initially set for hearing on September 14, 2026. The Court advanced the hearing date to July 6, 2026. The motion is opposed.

Background

This matter began with a Complaint filed by Plaintiff on September 13, 2023. The Complaint alleges various claims against Plaintiff's former employer, defendant Western Dental Services, Inc. ("Western Dental").

Pursuant to the stipulation of the parties (the "Stipulation"), the matter was referred to binding arbitration under a written arbitration agreement between the parties (the "Arbitration Agreement"). See Joint Stipulation to Binding Arbitration and Order thereon filed September 16, 2024 (the "Arbitration Order") and **Exhibit A** thereto.

The Court's Minute Order dated December 6, 2024 reflects that the parties sought additional time to complete the arbitration. A further Case Management Conference (CMC) was set for May 29, 2025. At